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Tentative Ruling

Re: ***Nelson Properties v. Affordable Roofing et al.***
Superior Court Case No. 25CECG01711

Hearing Date: July 2, 2026 (Dept. 502)

Motion: By Defendant APOC Roof Systems, Corp. on Demurrer to the Complaint and Motion to Strike

If oral argument is timely requested, it will be entertained on Wednesday, July 15 2026, at 3:30 p.m. in Department 502.

Tentative Ruling:

To overrule the demurrer as moot. (Code Civ. Proc., § 472, subd. (a).)

To deny the motion to strike as moot. (Code Civ. Proc., § 472, subd. (a).)

Explanation:

A party may amend its pleading any time after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition. (Code Civ. Proc., § 472, subd. (a).) Here, plaintiff Nelson Properties timely filed a first amended complaint on June 17, 2026 in lieu of an opposition to the demurrer filed by defendant APOC Roof Systems, Corp. The matter is now mooted by a superseding pleading, the demurrer is overruled and the motion to strike is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 7-1-26
(Judge's initials) (Date)

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Tentative Ruling

Re: **Ramirez v. Creative Alternatives School et al.**
Superior Court Case No. 25CECG05129

Hearing Date: July 2, 2026 (Dept. 502)

Motion: Defendants' Demurrer to the First Amended Complaint and
Defendants' Motion to Strike

**If oral argument is timely requested, it will be entertained on
Wednesday, July 15 2026, at 3:30 p.m. in Department 502.**

Tentative Ruling:

To continue the demurrer and motion to strike to Wednesday, August 5, 2026 at 3:30 p.m. in Department 502. Plaintiff S.A. is a minor and must have counsel in this matter. The motions are continued in order to give the minor an opportunity to obtain counsel. Counsel may file an amended complaint no later than July 29, 2026.

Explanation:

Meriah Ramirez has filed a complaint in propria persona on behalf of herself and the minor, S.A. While the Court did sign orders appointing her as the Guardian Ad Litem for the minor on December 4, 2025, a non-attorney cannot act in propria persona to represent minors, even where that person has been appointed as their Guardian Ad Litem. (Bus. & Prof. Code, § 6125; *J.W. v. Superior Court* (1993) 17 Cal.App.4th 958, 965-968.) As such, while Meriah Ramirez may represent herself, counsel must be obtained for the minor child. The Court continues the demurrer and motion to strike in order to allow plaintiff S.A. an opportunity obtain counsel. In the event counsel is obtained, counsel may file an amended complaint.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img on 7-1-26.
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